MEASURE RM
CITY ATTORNEY'S IMPARTIAL ANALYSIS

The South El Monte City Council ("City Council") is currently composed of one mayor who is directly elected at-large by the South El Monte voters, and four council members, each also elected at-large. South El Monte's elected mayor serves a term of four years.

Under California law, city councils of general law cities, such as the City of South El Monte ("City"), would fall under a default structure of a five-member body that selects one of its members to serve as the mayor, every two years coinciding with the City's regular election cycle. However, the voters of a general law city may approve a ballot measure to change the composition of their city council into a body comprised of one elected mayor and four councilmembers, all elected by the voters at-large. In 1999, South El Monte voters approved such a ballot measure establishing the office of mayor as an elective office and establishing the City Council's current structure referenced above.

Per Government Code section 34902(b), however, city voters may later restore a city council to the default structure of a five-member body with five councilmembers whose members select one of their members to hold the title of the mayor, instead of the voters.

If approved by South El Monte voters at the City's upcoming November 3, 2026 General Municipal Election, Measure RM would restore the City Council to a five-member body that, at least as frequently as every two years coinciding with the City's regular election cycle, selects one of its members to hold the title of mayor, instead of the voters. Under the Measure, the City's current incumbent mayor will be allowed to serve out the unexpired balance of her term. Commencing with the City's November 2028 regular election cycle, the position of the mayor will cease to exist as a voter-approved office and will not appear on the ballot. The City Council members amongst themselves will then select who will hold the title of the mayor.

A YES vote will change the office of the mayor from one that is directly elected by the voters, to one that is selected by the City Council, and reestablishes the seat as a City Council seat.

A NO vote will retain the direct election of the office of the mayor by the voters.

The above statement is an impartial analysis of Measure RM. If you desire a copy of the Measure, please contact the City Clerk's office by calling (626) 579-6540 or emailing sem.cityclerk@soelmonte.org, and a copy will be sent at no cost to you. A copy of the Measure is also available on the city elections home page at www.cityofsouthelmonte.org/401/Elections.

/s/ Susie Altamirano, City Attorney